

Syllabus

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SUPREME COURT OF THE UNITED STATES

Syllabus

BELLAREVELATION v. ROLEPLAYERSIXRP6, ET AL.**CERTIORARI TO THE UNITED STATES DISTRICT COURT FOR
THE DISTRICT OF COLUMBIA**

No. 26–9. Decided July 14, 2026

Before this case was assigned to him, Justice Feelings authored a published concurrence stating that petitioner, a sitting United States District Judge, warranted referral to Congress for impeachment-related investigation. Petitioner later filed an action challenging four articles of impeachment against her, and Justice Feelings, sitting by designation in the District Court for the District of Columbia, was assigned the case.

After the Chief Judge denied a joint request for reassignment, petitioner communicated privately with the Chief Judge concerning Justice Feelings’s handling of the matter. Justice Feelings thereafter ordered petitioner to show cause why she should not be held in criminal contempt. He presided over the contempt proceedings, entered six initial findings, and imposed a 48-hour term of imprisonment. As petitioner continued to challenge his authority, impartiality, and restrictions on further argument, Justice Feelings entered additional contempt findings, bringing the total reflected by the record to approximately eighteen.

Petitioner initially sought recusal and vacatur through motions that did not properly invoke this Court’s jurisdiction. She subsequently filed a petition for a writ of certiorari. Justice Feelings resigned before the Court decided the case.

Held: Justice Feelings was required to disqualify himself. Because his participation deprived petitioner of a neutral adjudicator, every criminal contempt finding and sentence entered against her is vacated.

1. *In re Murchison*, 349 U. S. 133, does not establish that a judge may never adjudicate contempt arising during proceedings before that judge. Courts retain traditional authority to punish misconduct occurring in open court and in the judge’s immediate presence. The issuance of an order to show cause therefore did not, standing alone, render Justice Feelings constitutionally incapable of adjudicating every subsequent contempt.

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This case, however, involved more than the ordinary exercise of contempt authority. Justice Feelings had previously taken a public position favoring impeachment-related action against petitioner. He then adjudicated her challenge to that impeachment, initiated contempt proceedings arising from complaints concerning his own handling of the case, and repeatedly punished petitioner as she challenged his authority and impartiality. Pp. 3–5.

2. Justice Feelings’s resignation did not moot the case. Although his departure foreclosed prospective relief directing him to recuse, the contempt judgments and sentence remained subject to effective relief through vacatur. P. 5.

3. Justice Feelings was required to disqualify himself under Canon 3(C)(1) of the Code of Conduct for United States Judges, which requires recusal whenever a judge’s impartiality might reasonably be questioned. The inquiry is objective and does not depend upon proof of subjective bias.

Justice Feelings publicly advocated impeachment-related action against petitioner before presiding over her challenge to that action. He then initiated and adjudicated criminal contempt proceedings against her and imposed imprisonment. On the cumulative record presented, a reasonable observer would question his neutrality, and the risk of bias was constitutionally intolerable.

Petitioner knew or should have known of the apparent conflict and failed to raise it squarely at the earliest opportunity. Her subsequent attempts to obtain relief were also procedurally defective. Those failures did not relieve Justice Feelings of his independent obligation to provide impartial adjudication. Pp. 5–7.

4. Vacatur is required. The denial of a neutral adjudicator is a structural error affecting the basic framework of the proceedings. It cannot be cured by asking whether a different judge might have reached the same result. Every criminal contempt finding entered by Justice Feelings, together with the sentence imposed upon those findings, must therefore be vacated.

The Court does not reach petitioner’s remaining arguments concerning whether contempt may be imposed for advancing legal arguments, whether the order restricting further argument was constitutionally valid, whether the original charge rested on a false factual premise or nonexistent legal prohibition, or whether the sentence exceeded the limit established by FCC § 1341(3). Vacatur on disqualification grounds provides complete relief and makes resolution of those questions unnecessary. Pp. 8–9.

Vacated.

SAICHARI, C. J., delivered the opinion for a unanimous Court.

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SUPREME COURT OF THE UNITED STATES

No. 26–9

BELLAREVELATION, PETITIONER *v.*
ROLEPLAYERSIXRP6, ET AL.

ON WRIT OF CERTIORARI TO THE UNITED STATES DISTRICT
COURT FOR THE DISTRICT OF COLUMBIA

[July 14, 2026]

CHIEF JUSTICE SAICHARI delivered the opinion of the Court.

We consider whether the Petitioner’s criminal contempt adjudications violated the Due Process Clause because the same trial judge initiated, presided over, and adjudicated the contempt proceedings; whether contempt may constitutionally be imposed for advancing legal arguments; whether the order prohibiting the Petitioner from making legal arguments was itself constitutionally valid and capable of subsequent contempt findings; whether the sentence imposed exceeded the maximum punishment authorized by FCC § 1341(3); and whether Justice Feelings was required to recuse from the related civil proceeding under Canon 3(C)(1) of the Code of Conduct for United States Judges, Section 2(c)(ii) of the Supreme Court Judicial Assistance Act, and the Due Process Clause.

I

As an essential matter, before the civil action was assigned to him, Justice Feelings authored a published concurrence in *In re BellaRevelation*, 1 U. S. ____ (2026). He wrote that “[r]eferral to the Congress for further investigation and impeachment is in order,” and that he

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would make such a referral if supported by his colleagues. *Id.*, at ____ (Feelings, J., concurring). Petitioner responded to that opinion from her chambers.

On May 17th, 2026, the Petitioner, Hon. BellaRevelation, a sitting United States District Judge for the District of Columbia filed a lawsuit challenging four articles of impeachment against her introduced in the Seventeenth Congress. Then Justice Feelings, riding in the District Court for the District of Columbia was assigned the matter.

Respondent's counsel replied to the matter on May 20th, completing the full brief. Justice Feelings did not attend to the matter for an additional seven days citing his out of RxUSA, real life job. On May 27th, Petitioner and Respondent filed a joint motion to remove Justice Feelings from the case to the Chief Judge of the District Court for the District of Columbia. The Chief Judge denied reassignment.

Following that denial, Petitioner communicated privately with the Chief Judge concerning Justice Feelings's handling of the case. The parties dispute whether the communication was a renewed argument for reassignment, an administrative complaint, an improper ex parte communication, or some combination thereof. On May 27th, Justice Feelings produced an order to show cause for the Petitioner who allegedly participated in ex parte communications with the Chief Judge of the District of Columbia regarding the motion to remove him. Contempt proceedings began that day. On May 30th, the Petitioner was found guilty on six criminal contempt findings, and sentenced to a 48-hour sentence for contempt.

During later proceedings, Petitioner challenged Justice Feelings's authority, attempted to discuss recusal, objected to restrictions on further argument, and demanded the legal basis for the contempt findings. Justice Feelings entered still more contempt findings. The record does not consistently identify the total with precision, which is an unfortunate feature for a case involving criminal

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judgments, but it reflects approximately eighteen findings by the conclusion of the relevant proceedings.

Petitioner sought relief from this Court through a motion for recusal and a motion to vacate. Those motions were denied because the procedural vehicle did not properly invoke this Court's jurisdiction. See *BellaRevelation v. roleplayersixrp6*, 1 U. S. ____, ____ (2026) (Inslee, C. J., concurring). Petitioner then filed a Petition for a Writ of Certiorari with this Court.

II

The Petitioner presents five questions. We address only those questions necessary to resolve the judgment below, and we do so in the order most appropriate to the disposition of this case. First, we will address whether all contempt findings issued by Justice Feelings are void under the Due Process Clause, and *In re Murchison*, 349 U. S. 133 (1955).

The Petitioner begins by arguing that all contempt findings issued by Justice Feelings are void under *In re Murchison*, 349 U. S. 133 (1955) because Justice Feelings “initiated the original charge, presided over the trial he convened, and all subsequent findings flow from the same tainted proceeding.” Petitioner’s principal reliance on *Murchison* places weight on the case that it simply does not bear.

Murchison did not hold that a judge is forbidden from punishing contemptuous conduct occurring in open court and in the judge’s presence. Rather, Justice Black’s opinion in *Murchison* explicitly preserves “the long-exercised power of courts summarily to punish certain conduct occurring in open court.” *In re Murchison*, 349 U. S. 133, 134 (1955), and that “adjudication by a trial judge of a contempt committed in his immediate presence in open court cannot be likened” to the extraordinary one-man-grand-jury procedure before the Court there. *Id.*, at 137.

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The Petitioner’s attempt to stretch *Murchison* into a sweeping, categorical ban on a judge adjudicating contempt citations that occurred in a trial matter misconstrues the narrowness of *Murchison*’s precedent. *Murchison*’s own fact pattern presents itself as such with how highly unusual it was, where a single judge in Michigan could operate as an investigator and a prosecutor in secrecy, gathering evidence, bringing witnesses into open court, and then convicting them based on his own investigation. Some of the findings here concerned conduct occurring in the court’s presence. *Murchison*, standing alone, does not dispose of those findings.

A standard Order to Show Cause (OSC) for violating courtroom boundaries is a routine exercise of a court’s authority. As the Court emphasized in *Murchison*, “adjudication by a trial judge of a contempt committed in his immediate presence in open court cannot be likened to the proceedings here.” *Ibid.* The original charge, unlike several later findings, concerned conduct outside Justice Feelings’s immediate presence. That distinction may implicate the plenary procedures required by Rule 42(a), but it does not transform *Murchison* into the categorical rule Petitioner proposes. Nor does the ordinary issuance of an order to show cause, standing alone, establish that the issuing judge has become an accuser forbidden from hearing every contempt arising before him. We therefore reject Petitioner’s contention that *Murchison*, by itself, invalidates every finding in these proceedings.

That problem, however, does not render the Petitioner’s first argument entirely defective. Summary contempt is available to preserve order, not to convert personal offense into criminal judgment. In *Offutt v. United States*, 348 U. S. 11 (1954), the Court recognized that the contempt power is “wholly unrelated” to a judge’s personal sensibilities and warned that judges may confuse offense to self with obstruction to law. *Id.*, at 14. Where contempt is entangled

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with the judge's personal feeling, another judge must make the final adjudication. *Id.*, at 14-16.

III

Before proceeding further, we address mootness. Justice Feelings has resigned. That resignation eliminates the need for a prospective order directing him to recuse. It does not eliminate the contempt judgments, the sentence imposed, or the legal consequences of criminal adjudications entered against Petitioner. This Court can still provide effective relief by vacating them. There's no need to apply the capable of repetition yet evading review doctrine when ordinary Article III jurisdiction can get the job done, seeing as the case is live with the sheer volume of contempt judgments.

This Court must nevertheless adamantly condemn Petitioner's appellate strategy.

The concurrence published by Justice Feelings in *In re BellaRevelation*, 1 U. S. ____ (2026) is public. Petitioner answered it from her chambers. She knew, or indisputably should have known of the conflict on day one. This defect had the subtlety of the Kool-Aid Man breaking through a wall¹, and it was visible to the party obligated to raise it.

Petitioner failed to place that squarely in the request for reassignment at the earliest opportunity. Petitioner later filed what can only be described as a procedurally nonsensical motion for recusal addressed directly to this Court while no proper appellate proceeding was before us. A motion does not become an invocation of Supreme Court jurisdiction merely because it is captioned to the Supreme Court. If immediate intervention was sought, the proper vehicle was extraordinary relief, such as mandamus, or a properly supported application for a stay.

The conclusion of this Court today is not an approval of that strategy. A litigant cannot sit on obvious grounds for

¹ OH YEAH!

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recusal, wait for deterioration that makes a case rival Chernobyl's radioactivity, and then play it when procedure actually matters. Whether that omission was strategic or completely inadvertent, neither explanation reflects well on Petitioner's advocacy. But the judge's duty to provide a neutral tribunal is not converted into an optional courtesy because the litigant handled the issue badly. Petitioner's procedural errors do not license a structurally compromised criminal contempt adjudication.

Section 2(c)(ii) of the Supreme Court Judicial Assistance Act provides that a Justice riding the District Court is bound by the procedural rules, evidentiary standards, and judicial-conduct expectations applicable to that court. The Code of Conduct for United States Judges is therefore directly relevant.

The Petitioner places principal reliance on Canon 3(C)(1)(e), concerning prior governmental participation or expression of an opinion in the particular case in controversy. Whether *In re BellaRevelation* and the later impeachment challenge were literally the same "particular case" is unnecessary to answer. The Code of Conduct does not need to be made so narrow in an argument for such an obvious conflict. Canon 3(C)(1) begins with a general and mandatory command: a judge "shall disqualify himself or herself in a proceeding in which the judge's impartiality might reasonably be questioned." That provision is sufficient.

The record before us reveals a textbook violation of this rule. Prior to taking the bench for this Case, Justice Feelings penned a published judicial concurring opinion of this Court explicitly stating: "Referral to the Congress for further investigation and impeachment is in order, and I would opt to do so if it were to be supported by my colleagues here." *In re BellaRevelation*, 1 U. S. (2026) (Feelings, J., concurring). The federal standard is objective. The question is not whether Justice Feelings believed himself impartial, nor whether this Court can prove

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subjective malice. It is whether a reasonable observer knowing the relevant facts would question his neutrality. *Liljeberg v. Health Services Acquisition Corp.*, 486 U. S. 847, 860–861 (1988). No reasonable citizen, not even one of the potato variety could look at a judge's published call for impeachment-related action and then have no question when that judge is assigned to decide the target's challenge to impeachment.

Williams v. Pennsylvania, 579 U. S. 1, 8–14 (2016), confirms that due process is violated when a judge's prior significant, personal involvement creates an impermissible risk that he will be called upon to validate an earlier position. The facts are not identical: Justice Feelings was not a former prosecutor, and D-2 preceded this litigation by months. But those distinctions do not resolve what followed. Justice Feelings publicly urged impeachment-related action against this Petitioner, then presided over her impeachment challenge, entered repeated criminal contempt findings against her, and imposed imprisonment. On that narrow and cumulative record, a reasonable observer would question his neutrality, and the risk of bias became constitutionally intolerable. The Due Process Clause required another judge.

The remedy is vacatur. *Liljeberg* directs courts to consider the risk of injustice to the parties, the risk of injustice in other cases, and the risk of undermining public confidence in the judicial process. 486 U. S., at 864. All three factors support relief.

Petitioner was criminally adjudged and imprisoned by a judge whose prior public position and subsequent personal entanglement deprived the proceedings of a neutral tribunal. To permit a structurally disqualified jurist to wield Telemon's banhammer in the form of the summary contempt power would inflict a profound injustice upon both the parties and the administration of justice.

The error affected the identity of the adjudicator and is structural; it cannot be cured by asking whether a neutral

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judge might have reached the same result. *Williams*, 579 U. S., at 14–17. Accordingly, every criminal contempt finding entered by Justice Feelings against Petitioner, together with the sentence imposed upon those findings, is vacated.

IV

Petitioner asks this Court to decide several additional questions. She argues that contempt may not be imposed for advancing legal arguments; that the order restricting further argument was constitutionally invalid; that the original charge rested on a false factual predicate and a nonexistent legal prohibition; and that the sentence exceeded the maximum authorized by FCC § 1341(3).

We do not reach those questions.

The traditional rule of judicial restraint counsels against deciding constitutional questions unnecessary to the judgment. *Ashwander v. TVA*, 297 U. S. 288, 346–347 (1936) (Brandeis, J., concurring). The same restraint applies to statutory questions whose resolution would not alter the disposition. Part III fully resolves the contempt judgments before us. Every finding and the sentence imposed upon them have been vacated. Nothing further is required to afford Petitioner relief from those adjudications.

To reiterate: the Court does not hold that a litigant may speak whenever she wishes, ignore lawful courtroom directions, repeat an argument indefinitely, or convert every act of disobedience into protected advocacy merely by calling it a legal argument. Nor do we decide whether FCC § 1341(3) establishes a per-count or per-proceeding maximum. Those questions may be important in another case. They are unnecessary in this one.

* * *

Accordingly, every criminal contempt finding entered against Petitioner by Justice Feelings, together with the sentence imposed and already served, is **VACATED**. Because the underlying civil action has been dismissed and

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the contempt proceedings under review have concluded, no remand is necessary.

It is so ordered.